

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUPP033684: JANE DOE vs RANCHO SIMI RECREATION AND PARK
DISTRICT, et al.**

06/30/2026 in Department 21

**Motion to Compel Further Responses to Request for Production of Documents and
Request for Sanctions**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion to Compel Defendant Rancho Simi Recreation and Park District to Provide Further Responses to Plaintiff’s Request for Production of Documents, Set One and Request for Sanctions Against Defendant and/or Its Counsel of Record, Dennis Walsh, in the Amount of \$3,500

Tentative Ruling:

Plaintiff’s Motion to Compel Defendant Rancho Simi Recreation and Park District to Provide Further Responses to Plaintiff’s Request for Production of Documents, Set One and Request for Sanctions Against Defendant and/or its Counsel of Record, Dennis Walsh, in the Amount of \$3,500 is GRANTED in part and DENIED in part.

Regarding Requests for Production nos. 1, 3-4, 42, 44, 45, 49, 51 and 54, the Court orders that Defendant comply with Section 2031.240(b) and identify with particularity any documents or categories of documents to which an objection is made, and to clearly set forth the specific grounds for the objection within 15 days from the date of this ruling. Defendant is not required to provide a detailed, document-by-document factual description required by a statutory privilege log, but must provide Plaintiff with sufficient information as to the categories of documents to which an objection is made, and to clearly set forth the specific grounds for the objection.

Plaintiff’s motion to compel further responses to Requests for Production nos. 34 and 36 is DENIED.

The parties’ respective requests for sanctions in connection with this motion are DENIED.

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Notice to be served by Defendant.

Discussion:

A. Legal Principles

Under California law, a court cannot require a party to provide a "privacy log" or similar documentation when an objection to a request for production of documents is based on third-party privacy rather than privilege.

The California Code of Civil Procedure specifically confines the requirement of producing a log to objections based on privilege or attorney work product. Under Section 2031.240, subdivision (c)(1), a responding party must provide sufficient factual information for other parties to evaluate the merits of a claim, "including, if necessary, a privilege log," only "[i]f an objection is based on a claim of privilege or a claim that the information sought is protected work product." (Cal Code Civ Proc § 2031.240.) The California Legislature explicitly intended this statutory provision "to codify the concept of a privilege log as that term is used in California case law." (Cal Code Civ Proc § 2031.240, *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal. App. 4th 1116, 1125.)

California courts have long recognized that the statutory privileges established in the Evidence Code are exclusive. Courts are not permitted to create new privileges as a matter of judicial policy. (*Schnabel v. Superior Court* (1993) 5 Cal. 4th 704, 711-712.) Because the constitutional right to privacy under the California Constitution is not a recognized statutory privilege, but rather a "limited form of protection" or a "constitutional or statutory privilege" evaluated under a separate judicial framework it does not fall under the strict statutory log requirements of CCP § 2031.240. (*Id.*; *Board of Registered Nursing v. Superior Court* (2021) 59 Cal. App. 5th 1011, 1044.)

California courts resolve discovery disputes involving third-party privacy by applying a distinct constitutional balancing framework. (*Board of Registered Nursing v. Superior Court*, *supra* at 1039; *SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal. App. 4th 741, 754.) Under this framework, the court must balance the requesting party's need for discovery against the third party's privacy interests. (*SCC Acquisitions, Inc. supra* at 754; *Vinson v. Superior Court* (1987) 43 Cal. 3d 833, 842-843.)

There is an example of a "privacy log" in *Kirkland v. Superior Court*. There, the discovery referee directed the responding party to provide "a log of all materials" claimed to constitute personal financial materials belonging to private third parties. The Court of Appeal denied writ relief and upheld the discovery process, emphasizing California's broad discovery policy and that doubts about discoverability are generally resolved in favor of disclosure. (*Kirkland v. Superior Court* (2002) 95 Cal. App. 4th 92, 96.)

That said, a court cannot compel a formal "privacy log" under the authority of CCP § 2031.240. However, a responding party is still required by Section 2031.240(b) to identify with particularity any documents or categories of documents to which an objection is made, and to

clearly set forth the specific grounds for the objection. (CCP § 2031.240(b).) This obligation to state objections with particularity does not equate to the detailed, document-by-document factual descriptions required by a statutory privilege log. (CCP § 2031.240(b), *Catalina Island Yacht Club v. Superior Court*, supra at 1130.)

1. Privacy Objections

To invoke the constitutional protection, it is sufficient to show that the information has been sought, and that the information is in a protected zone of privacy. (*Davis v Superior Court* (1992) 7 CA4th 1008, 1018–1019.)

Nonparties: The constitutional protection of privacy in discovery matters also extends to nonparties. (See *Safechuck v MJJ Prods., Inc.* (2023) 94 CA5th 675, 701–702 (privacy interests of nonparty alleged sexual abuse victims outweighed plaintiff's interest in corroborating his own sexual abuse by taking depositions); *Digital Music News LLC v Superior Court* (2014) 226 CA4th 216, 229, disapproved on other grounds in *Williams v Superior Court* (2017) 3 C5th 531, 557 n8. In weighing the privacy interests of nonparties, a judge should consider the nature of the information sought, its inherent intrusiveness, and any specific showing of a need for privacy, including any harm that disclosure of that information might cause. (*Marriage of Williamson* (2014) 226 CA4th 1303, 1319.)

Matters that would otherwise be protected by the constitutional right to privacy are discoverable only if they are directly relevant to the plaintiff's claim and essential to a fair resolution of the action. (*Vinson, supra* at 842.) A party seeking access to constitutionally protected information has the burden of proving direct relevance. (*Davis v Superior Court* (1992) 7 CA4th 1008, 1017.)

When the constitutional right of privacy is involved, the party seeking discovery of a private matter must do more than satisfy the standard of CCP § 2017.010 (matter relevant and either admissible or reasonably likely to lead to the discovery of admissible evidence). (*Williams v Superior Court* (2017) 3 C5th 531, 556.) Not every assertion of a privacy interest under the Constitution, however, must be overcome by a compelling interest. A compelling interest is required to justify an obvious invasion of an interest that is fundamental to an individual's personal autonomy; but when lesser interests are at stake, a more nuanced framework applies, with the strength of the countervailing interest sufficient to warrant the disclosure of private information varying according to the strength of the privacy interest, the seriousness of the invasion, and the availability of alternatives and protective measures. (*Id.* at 556–557.)

The judge must consider the purpose of the information that is sought, the effect that disclosure will have on the affected persons and parties, the nature of the objections urged by the party resisting disclosure, and the availability of alternative, less intrusive means for obtaining the requested information. Based on an application of these factors, the more sensitive the nature of the personal information that is sought to be discovered, the more substantial the showing of the need for the discovery that will be required before disclosure will be permitted. (*SCC Acquisitions, Inc. v Superior Court* (2015) 243 CA4th 741, 754–755.) The party asserting a privacy interest has the burden of establishing its extent and the seriousness of the prospective

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invasion. Against this showing, the judge must weigh the countervailing interests the opposing party identifies. (*Williams, supra* at 557.)

B. Analysis

1. Requests for Production (“RPD”) nos. 1, 3, 4, 42, 44, 45, 49, 51, and 54.

Plaintiff seeks to compel Defendant “to identify responsive, withheld documents on a privilege log and to substantively response to two critical requests for production of documents seeking complaints lodged against RSRPD counselors for failing to supervise students in their care.” The Requests for Production (“RPD”) in issue are RPD nos. 1, 3, 4, 42, 44, 45, 49, 51, and 54.

• **Request for Production No. 1:** Please produce all DOCUMENTS YOU prepared which PERTAIN TO PLAINTIFF, including, but not limited to, all correspondence between any of YOUR employees, any and all documented complaints, investigation reports, any and all correspondence between YOU and any third parties, and any and all correspondence between YOU and any employee of Defendant Simi Valley Unified School District.

• **Request for Production No. 3:** Please produce all DOCUMENTS that PERTAIN to any statements made by any person relating to any of the allegations contained in PLAINTIFF'S complaint on file herein including, but not limited to, written statements, notes of interviews, tape recordings of any and all oral statements and/or interviews; transcriptions of any tape recordings of any and all oral statements and/or interviews; reports regarding the results of any and all interviews or investigations; or correspondence relating to the allegations contained in the subject complaint.

• **Request for Production No. 4:** Please produce all internal memoranda, e-mail, or other DOCUMENTS and WRITINGS that PERTAIN to PLAINTIFF and the allegations made in this subject lawsuit.

• **Request for Production No. 34:** Please produce any and all complaints against any of YOUR employees, including complaints lodged by YOUR employees, teacher, parent, or student, for failure to properly supervise students at any of YOUR after-school care or summer camp programs from 2017 to the present.

• **Request for Production No. 36:** Please produce all DOCUMENTS, including any COMMUNICATIONS, related to any and all complaints by any individual lodged against any of YOUR employees for a failure to properly supervise students in YOUR care from 2017 to the present.

• **Request for Production No. 42:** Please produce all DOCUMENTS related to YOUR procedures to prevent assault against any student by Indigo DeJesus following JANE DOE's complaint of sexual assault.

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- **Request for Production No. 44:** Please produce all DOCUMENTS related to notifying any student, parent, counselor, or any of YOUR employees of the safety risk posed by Indigo DeJesus following JANE DOE's complaint of sexual assault by Indigo DeJesus.
- **Request for Production No. 45:** Please produce all DOCUMENTS related to YOUR policies and procedures for notifying individuals, including students and parents, of any safety risk posed at any of YOUR afterschool care programs or summer camps in effect from 2022 to the present.
- **Request for Production No. 49:** Please produce all COMMUNICATIONS between YOU and any of YOUR employees regarding the complaint of sexual assault by Indigo DeJesus against JANE DOE.
- **Request for Production No. 51:** Please produce all COMMUNICATIONS between YOU and any parents of students enrolled in any of YOUR afterschool care or summer camp programs regarding the complaint of sexual assault by Indigo DeJesus against JANE DOE.
- **Request for Production No. 54:** Please produce all DOCUMENTS, including any COMMUNICATIONS related to the decision to enroll Indigo DeJesus in any counselor-in-training program at any of YOUR afterschool care or summer camp programs.

Defendant's privacy objections: Along with other boilerplate objections, in response to each of the above requests, Defendant responded: "It seeks to violate the privacy rights of persons guaranteed by the California Constitution, Article I, Section I. Responding party further objects to this request to the extent it seeks information protected by the attorney client privilege and/or the attorney work product doctrine, and seeks information prepared in anticipation of litigation."

A court cannot compel a formal "privacy log" under the authority of CCP § 2031.240. However, a responding party is still required by Section 2031.240(b) to identify with particularity any documents or categories of documents to which an objection is made, and to clearly set forth the specific grounds for the objection. (CCP § 2031.240(b).) This obligation to state objections with particularity does not equate to the detailed, document-by-document factual descriptions required by a statutory privilege log. (CCP § 2031.240(b), *Catalina Island Yacht Club v. Superior Court*, supra at 1130.)

Short of ordering a "privacy log," the Court orders that Defendant comply with Section 2031.240(b) and identify with particularity any documents or categories of documents to which an objection is made, and to clearly set forth the specific grounds for the objection. Defendant is not required to provide a detailed, document-by-document factual descriptions required by a statutory privilege log, but must provide Plaintiff with sufficient information as to the categories of documents to which an objection is made, and to clearly set forth the specific grounds for the objection.

2. Requests for Production nos. 34 and 36.

Plaintiff seeks an order compelling Defendant to provide further responses to RPD nos. 34 and 36. Defendant provided objections only responses to these requests.

- **Request for Production No. 34:** Please produce any and all complaints against any of YOUR employees, including complaints lodged by YOUR employees, teacher, parent, or student, for failure to properly supervise students at any of YOUR after-school care or summer camp programs from 2017 to the present.

- **Request for Production No. 36:** Please produce all DOCUMENTS, including any COMMUNICATIONS, related to any and all complaints by any individual lodged against any of YOUR employees for a failure to properly supervise students in YOUR care from 2017 to the present.

After meet and confer efforts, Plaintiff offered to narrow the scope of these RPDs to include complaints and related communications against RSRPD employees who worked at Garden Grove Elementary School after school club or any other RSRPD before and after school club or summer camp attended by I.D. from 2017 to the present. Defendant was not agreeable.

Defendant's objection based on overly broad has merit. As Defendant points out, Plaintiff does not explain the need for documents from 2017 to the present. The incident occurred in 2024 and Plaintiff claims Defendant was on notice of an issue regarding I.D. since about 2021. As such, even with the proposed narrowing, these requests remain overly broad in time. Additionally, Defendant is correct that these requests are vague and overly broad in scope with regards to "any and all complaints....for failure to properly supervise students".

Defendant also objects on the grounds that these requests seek to violate the privacy rights of persons guaranteed by the California Constitution, Article I, Section I. (To RPD no. 36 only:) "Responding party further objects to this request to the extent it seeks information protected by the attorney client privilege and/or the attorney work product doctrine, and seeks information prepared in anticipation of litigation."

It is undisputed that behavior records of any number of unnamed minors are private information, and such disclosure would constitute an invasion of privacy. It follows that Plaintiff must show a compelling need for the information sought, i.e. that the information is directly relevant and essential to the fair resolution of the lawsuit. (See *Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.)

These records may be indirectly relevant to Plaintiff's lawsuit to the degree that it may establish a pattern of cover-ups or negligent hiring/retention by Defendant RSRPD. However, they do not appear directly relevant to whether any of those acts were committed by RSRPD as it pertains to Plaintiff's specific case and as it pertains to I. D. When balancing Plaintiff's need for these records against the broad invasion of privacy their disclosure would entail, the privacy interests must prevail as it pertains to the broad set of records Plaintiff is seeking here.

In sum, Plaintiff's motion to compel further responses to RPD nos. 34 and 36 is DENIED.

3. Request for Sanctions

The parties' respective requests for sanctions in connection with this motion are DENIED.